

Brecksville-Broadview Heights City School District

PROPOSAL FOR LEGAL REPRESENTATION FOR NEGOTIATIONS

NOVEMBER 2020

SUBMITTED TO CRAIG YANIGLOS, BOARD TREASURER

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CO., L.P.A.

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WHO WE ARE

Peters Kalail & Markakis Co., L.P.A. greatly appreciates the opportunity to submit this proposal for legal services to the Brecksville-Broadview Heights City School District Board of Education. It is our sincere hope that we can bring the Board a fresh perspective with a proposal that streamlines the efficient use and cost-effective delivery of legal services.

When it comes to getting results for clients, experience and expertise are essential. Peters Kalail & Markakis Co., L.P.A. (“PKM”) is 100% focused on the practice of school law. PKM’s school law team is comprised of eight (8) attorneys dedicated to the representation of Ohio school districts. Over the years, we have made a conscientious and deliberate effort to offer school districts a boutique law firm that can single-handedly address most, if not all, of a school district’s legal needs. Our attorneys clearly understand the importance and value of the relationship we maintain with each and every one of our school clients. Our success in this competitive environment is derived from establishing trust and growing relationships through the provision of responsive legal services.

In addition to serving public school districts on a statewide basis, we proudly offer a legal hotline service in conjunction with our longstanding partnership with the Ohio Schools Council. We are also general counsel to and provide regular policy consultation for Neola® - the largest provider of board policies and guidelines in Ohio. We are also pleased to serve as legal counsel to the Tri-County Educational Service Center Legal Consortium. The Consortium was developed to provide participating school districts direct and convenient access to legal counsel in all areas of education law while controlling costs, eliminating duplication of legal advice, and increasing personal access to attorneys and shared services.

As a full-service school law firm located on Rockside Road in Independence, we have a significant presence in Cuyahoga County and experience with many different legal issues that school districts face. The following characteristics help to distinguish and uniquely qualify us to perform the District’s legal work:

- All of our attorneys have represented boards of education for a majority of their years in practice.
- Many of our attorneys work in more than one school law practice area, allowing us to provide our clients the effective service they expect and deserve.
- We currently represent boards of education throughout Ohio.
- Close proximity to Brecksville-Broadview Heights City School District.

Clients benefit from our statewide presence, active networking, and decades of experience. Many school districts face common challenges. Our team of lawyers benefit by interfacing with one another every day so that we can take what we learn from each situation and apply that knowledge to answer similar questions and to solve similar problems while considering a client’s unique needs and priorities.

QUALIFICATIONS AND REQUIREMENTS

All attorneys at PKM readily meet the following minimum requirements as set forth in the RFP:

✓ **Members in good standing of the Ohio Bar Association**

PKM attorneys are members in good standing of the Ohio Bar Association and serve on various committees including the Labor Employment Law Section. Our lawyers are also members of legal/professional organizations including the American Bar Association, the Ohio Council of School Board Attorneys, the National Council of School Attorneys, and the National and Ohio Public Employee Labor Relations Associations.

✓ **Significant Experience Working with or for Ohio School Districts**

PKM attorneys have decades of school law experience and are well versed in virtually all aspects of school law, possessing a reputation of providing clear and honest legal guidance with integrity.

✓ **Ability to Provide Same-Day Response**

Dealing with legal matters can often be a highly emotional and stressful time. Not knowing when your lawyer is going to get back to you doesn't help matters, particularly when it's an important issue that needs an urgent response.

- PKM acknowledges the importance of availability and promises that when you contact us you will hear back from us the very same day, even if it's just an acknowledgment while a more detailed reply is prepared.
- PKM attorneys are available **24/7** and our clients are provided with phone numbers to reach us day and night.

✓ **Assignment of a Lead Attorney with Appropriate Experience**

As a leader in the area of School Law, we understand the need for seasoned and trustworthy attorneys who become a part of your extended team and contribute to your preparedness to respond to legal challenges.

PKM maintains a team of qualified school lawyers with a focused range of skill sets and experiences that ultimately serve to save a board time and money providing it with school attorneys with significant experience serving boards of education.

Scott Peters, with a 28-year school law practice, will serve as the primary contact and lead attorney for BBHCSD. Scott has a broad range of labor and employment

experience that enables him to effectively and competently represent school districts.

BBHCSD is most familiar with Scott's talents in special education law, having actively represented the BBHCSD for many years. However, as demonstrated herein, Scott's negotiations experience is equally impressive.

✓ **No Substantive Conflict of Interest in Representing the Board**

Exclusively representing boards of education in Ohio results in PKM having little to no opportunity for a conflict of interest. Specifically, PKM has no known conflict of interest with BBHCSD.

✓ **Commitment to the Brecksville-Broadview Heights City School District**

- PKM pledges the resources and commitment of our entire firm to further our relationship with the Brecksville-Broadview Heights City School District in order to provide exceptional, accessible, and cost-effective legal services.
- We promise to be accessible and to communicate with you regularly. While we cannot guarantee outcomes, we do guarantee your satisfaction with our legal services.
- If at any time we do not perform to your satisfaction, we ask that you inform us promptly. We will then resolve the issue to your satisfaction, even if it means reducing our fees.

**EXPERIENCE AND COMMITMENT TO THE
BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOLS**

Past Representation of the Brecksville-Broadview Heights School District

For many years, PKM served as legal counsel to the Brecksville-Broadview Heights City Schools. Most recently, the focus of our representation is on Special Education. Over the years, Scott has demonstrated his negotiation skills working through many challenging issues with special education parent advocates. These skills translate seamlessly to the bargaining table.

Negotiations Experience

Possessing the right personal characteristics and social attributes contribute to successful negotiations. A good school board negotiator must demonstrate the following characteristics:

Empathy is the ability to participate in another's feelings or ideas, to put yourself in someone else's shoes. It's the bedrock of successful communication and a necessary trait for great negotiators. Being empathetic helps you recognize the differences between you and other people, allowing you to maintain your identity as you experience the views and emotions of others. You

can improve your empathetic responses by acknowledging the behaviors, values, and goals that others may have.

Respect closely follows empathy. In order to respect other people and the limits they set, you must first have respect for yourself and the limits you set. Respect tends to be reciprocal in negotiations: If you give it, you're much more likely to get it back.

Integrity includes honesty and trustworthiness — qualities necessary for others to trust you in a negotiation. You can hone your integrity by following rules, keeping agreements (without reminders), and being steadfastly honest. Not replying to a certain question or divulging certain information is acceptable; lying is not.

Fairness is another trait based on empathy. You must believe that the needs and wants of other people are just as worthwhile as your own. To develop fairness, consider your goals and those of the other party. Identify areas of agreement and areas that need compromise. Being fair ensures that a deal closes or ends with satisfaction for all parties.

Patience is the act of bearing pains or trials without complaint. Tolerating frustration and adversity on the way to reaching your goals — and not giving up — is a way to demonstrate patience. All successful people know that being refused, delayed, and blocked is part of life's journeys. Success comes to those who are steadfast and patient.

Responsibility is the ability to demonstrate reliability and accept consequences. Being responsible doesn't mean that you won't make mistakes, but it does mean that you'll correct them to the extent possible. Improve your skills in this area by taking care of the problems — the little ones and the big ones, too — for which you're responsible.

Flexibility is the ability to deal with new situations and unexpected obstacles. If one approach doesn't work, you try another. Flexibility is at the heart of closing a deal in a way that satisfies each side and works in the real world.

Sense of humor is the ability to see, appreciate, or express an amusing aspect of various situations. Finding humor in adversity helps you get on with finding solutions rather than getting stuck in the blame game. A prerequisite for a good sense of humor is self-respect and flexibility.

Self-discipline is the ability to complete tasks and reach goals without someone else needing to direct or motivate you. Internal forces drive you toward your goals, and your rewards come from within rather than from other people.

It is through years of experience at the bargaining table that Scott has developed his skill set as an effective negotiator. While holding strong to your goals and objectives, he holds steadfast to these characteristics that allow him to provide competent guidance through each step of the bargaining process.

Scott has vast experience bargaining with both certificated/licensed and classified personnel represented by the various unions in Ohio. Scott is particularly adept at:

- Reviewing and analyzing labor contracts;
- Draft bargaining proposals;
- Identifying Board priorities by needs and operational constraints;

- Serving as primary spokesperson at the bargaining table;
- Creating a professional and appropriate bargaining environment;
- Apprising the board of education of progress at the table.
- Interpreting and implementing labor contracts;
- Conducting in-service sessions and workshops;
- Consulting on grievances and arbitration defense; and,
- Defending unfair labor practice charges at SERB.

Scott has handled traditional bargaining as well as Interest Based Bargaining and everything in between. He has mediated through both AAA and FMCS and has recently participated in the fact-finding process at SERB.

Scott Peters' Anecdotal Evidence

Every school district in Ohio is unique and each bargaining table has its own subculture with its own ideologies, rules and protocols. What is otherwise an objective discourse over workplace issues often becomes an emotionally charged environment that can quickly turn combative and challenging. An ideal negotiating environment would be a room where every seat at the table is filled with trust, self-control, and security. More often than not, the ideal bargaining table does not exist. It is in these situations where a seasoned negotiator can help to navigate the life-affecting subject matters that are the center of difficult discussions.

Scott was asked to share his experience with one of the most difficult collective bargaining negotiations he has been involved in and how he achieved a successful outcome.

“One of the most difficult challenges that I have faced at the bargaining table in the past couple of years occurred in the spring of 2019 when I attended the first bargaining session for a joint negotiation involving both certified and classified bargaining units for a new client school district. The client had historically used IBB, and, in accordance with the IBB process, we prepared our Ground Rules, Statement of Issues, and Housekeeping Items in advance of the IBB training and initial bargaining session. We arrived at the first bargaining session prepared to exchange documents, and work with the FMCS Facilitator to set a positive tone at the table.

By way of background, this district was experiencing significant financial hardship and the Board had directed that the bargaining team needed to secure significant amendments to the health insurance plan, which the Board and administration viewed as much too “rich” and not in line with comparable surrounding districts. Even with this intention – which the administration had communicated to the union leadership more than a year earlier – the Board was hoping to complete negotiations prior to the conclusion of the 2019-2020 school year.

As the first bargaining session commenced, the Board's team thought it would be helpful to have the Treasurer make a preliminary presentation concerning the District's finances and to have the District's third-party health insurance consultant present information about the sections of the health plan that were out of line with neighboring districts' plans. As the two presentations were concluding, out of nowhere, the union's labor relations consultant and a financial "expert" from OEA began a verbal attack against the District's Treasurer, including claiming her to be both incompetent and corrupt.

It quickly became apparent that the parties needed a break, and I worked with the FMCS Facilitator to separate the parties so the Board's team could regroup and the FMCS Facilitator could speak with the union concerning what had just happened. After a number of sidebars with the union president and labor relations consultant, the parties decided to terminate IBB and move to traditional bargaining. During the following week, I worked with the Board's team to develop traditional bargaining proposals, which we presented at the next bargaining session.

Even with the "bad taste" the first bargaining session left in the Board's team's mouth, we patiently and consistently worked for the next 12-months to explain the District's financial condition to the union leadership and attempt to reestablish trust or at least a working relationship that would permit the parties to conclude the negotiations in a manner that allowed the Board to achieve its primary goals.

When impasse was ultimately declared after nearly a year of bargaining, the parties were finally at a point where they accepted each other's numbers, even if they could not reach a tentative agreement on a new contract. After conducting a three-day factfinding hearing before a SERB hearing officer, the Board realized its goals when the Factfinder recommended meaningful changes to the health insurance plan and a financial proposal that was not as expensive to the Board as one it had offered to the union in the fall of 2019, which the union had previously rejected."

The scenario described above should not have to be experienced by anyone. It exemplifies how quickly a situation can take a turn for the worse. More importantly, it demonstrates how cooler heads can prevail.

An important takeaway that Scott carries with him as a school lawyer representing boards of education in negotiations is the confidence in knowing that he will not be able to please everyone all of the time. Like with the example that he shared, if he is able to walk away knowing that he got an agreement that preserves good relations and protects his client's core values and goals then he know he did his best. The following are key traits that Scott embodies:

- Not afraid to question authority constructively and respectfully
- Knows when to speak and when to let silence speak.
- Trusts his instincts.
- Listens more and talks less.
- Is open to new concepts and don't be afraid of change.

GENERAL COUNSEL EXPERIENCE

Our vast experience as general counsel to Ohio's school boards encompasses all aspects of school law from preventive counseling to lawsuit defense. Our depth of knowledge allows us to respond efficiently to our clients' concerns. Our school attorneys handle the following areas:

Human Resources

- Hiring practices/criminal records checks
- Certificate/licensure misconduct
- Employment contracts
- Personnel records
- Substitute issues
- Compensation, insurance, and other fringe benefits
- Discipline
- Evaluations/Performance Improvement Plans
- Drug and Alcohol testing
- Discrimination and/or Harassment
- Union membership and labor matters
- Constitutional issues
- Americans with Disabilities Act ("ADA")
- Family Medical Leave Act ("FMLA")
- Fair Labor Standards Act ("FLSA")
- Leaves of absence
- Workers' Compensation/Unemployment
- STRS, SERS, and/or PERS
- Retirement and "Retire/Rehire" issues
- Contract non-renewal
- Suspension and/or termination
- Reduction-in-force ("RIF")

Special Education/Student Services

- Representing districts at IEP and 504 team meetings
- Providing representation at mediations, due process hearings, and subsequent appeals
- Responding to investigations by the Ohio Department of Education
- Reviewing IEPs, ETRs and Section 504's for legal compliance
- Responding to investigations by the U.S. Dept of Ed, Office for Civil Rights
- Assist clients with drafting PR-01s
- Conduct staff in-services

Student Issues

- First Amendment issues, such as student dress and speech, prayer
- Equal Access Act and Title IX issues
- Student records – FERPA/R.C. 3319.321
- Tuition and residency problems including homelessness and foster care issues
- Suspension/Expulsion
- Bullying/harassment

- Custody and guardianship issues
- Child abuse reporting requirements
- Peer-to-peer harassment, including discrimination and bullying/cyberbullying
- Student participation in extra-curricular activities, including drug testing
- Home schooling and post-secondary enrollment questions

Business Contracts

- Real estate transactions including sale/lease of school buildings acquisition of property
- Cellular tower leases
- Oil and gas well leases
- Copy machine leases
- Exclusive beverage contracts
- Educational programming contracts
- Transportation contracts
- Equipment and supply leases/contracts
- Utility contracts
- Fuel contracts
- Consultant contracts
- Vendor contracts for services and/or goods

Tax Valuation/Abatements/Exemptions

- Challenging and defending real estate valuation complaints
- Negotiations with companies/firms receiving tax abatements
- Enterprise zones
- Community reinvestment areas
- Tax increment financing (TIFs)
- Tax exemption applications for charitable, religious and other organizations programs

Administrative Practice

- U.S. Department of Education, Office for Civil Rights
- Ohio Department of Education
- Equal Employment Opportunities Commission
- Ohio Civil Rights Commission
- Ohio Unemployment Compensation Commission
- Ohio Bureau of Workers' Compensation and the Industrial Commission
- State Employment Relations Board
- County Boards of Revision/Ohio Board of Tax Appeals

In-Service Presentations

We are available for in-services on a variety of topics. Recent topics have included the following:

- *Top Ten Issues in School Athletics*
- *Top Ten Tips in Negotiating School Vendor Contracts*
- *Social Media, School Employees and the First Amendment*

- *Where do Parents' Rights End and School District's Rights Begin?*
- *Hot Topics in School Law: Update on Legislation, Case Law, and Developments Involving Federal and State Agencies, including OCR, EEOC, and SERB*
- *Social Media Do's and Don'ts*
- *Legal Issues Related to Website Accessibility*
- *Hot Topics in Special Education Law*
- *Making the Most at Your Board of Revision*
- *Student Discipline*
- *Employee Discipline*
- *Update on Truancy Laws, Transgender Equality, Custody Issues and FERPA*
- *Leaves of Absence During COVID 19 Pandemic*
- *Title IX Compliance Under the New Regulations*

REFERENCES

The following school districts are a representative list of several school districts in various counties in which Scott Peters recently served as lead negotiator:

Twinsburg City School District (Summit County)

11136 Ravenna Road
Twinsburg, Ohio 44087-1022
(330) 486-2000

Kathryn M. Powers, Superintendent
kpowers@twinsburgcsd.org

Martin Aho, Treasurer
maho@twinsburgcsd.org

Non-certified contract – 2019-2020
Certified contract – 2018

Clearview Local School District (Lorain County)

4700 Broadview Ave.
Lorain, OH 44052

Jerome Davis, Superintendent
Jerome.Davis@ClearviewSchools.org

Mary Ann Nowak, Treasurer
Maryannnowak@ClearviewSchools.org

Certified contract – 2019
Non-certified contract – 2019-2020

Northwestern Local School District (Wayne County)

Jeff Layton, Superintendent
nrws_layton@tccsa.net

Lesa Forbes, Treasurer
nrws_lforbes@tccsa.net

Certified contract – 2019-2020
Non-certified contract – 2019 - 2020

Rootstown Local School District (Portage County)

Andrew Hawkins, Superintendent
hawkins@rovers.k12.org

Connie Baldwin, Treasurer
cbaldwin@rovers.k12.org

Certified contract - 2020

The following school districts can serve as a reference for general school counsel in various capacities.

Bay Village City School District

377 Dover Center Road
Bay Village, OH 44140
440-617-7302

Jodie Hausman, Superintendent
Jodie.Hausmann@bayschoolsohio.org

Nikki Spriggs, Treasurer
Nicole.Spriggs@bayschoolsohio.org

Cleveland Heights-University Heights City School District

2155 Miramar Blvd.
University Heights, OH 44118

Karen Liddell-Anderson, Director of Student Services
K_Liddell@chuh.org

Garfield Heights City School District

5640 Briarcliff Drive
Garfield Heights, OH

Chris Hanke, Superintendent

chanke@ghbulldogs.org

Al Sluka, Treasurer
asluka@ghbulldogs.org

Maple Heights City School District

5740 Lawn Avenue
Maple Heights, OH 44137
216-587-6100

Dr. Charles T. Keenan, Superintendent
charlie.keenan@mapleschools.com

KJ Beverly, Treasurer
kjbeverly@mapleschools.com

Solon City School District

33800 Inwood Rd.
Solon, OH 44139
440-248-1600

Fred Bolden, Interim Superintendent
FBolden@solonboe.org

Tim Pickana, Treasurer
tim.pickana@solonboe.org

BUDGET/FEE PROPOSAL

PKM is committed to providing comprehensive legal services to Ohio school boards at a reasonable cost.

The Firm bills clients on a monthly basis in tenths of an hour, or 6-minute increments, with each billing entry indicating which attorney or paralegal performed the work, the time spent, and a detailed description of the work. For telephone consultation, email and text communications and the undertaking of legal work in general, our hourly rates as set forth below apply.

The Firm does not bill for any clerical services necessary in the representation of our clients. We do bill for costs related to a matter (i.e. court reporters, transcripts, filing fees and other associated court costs, excessive copy charges (over 50 copies @ .10 cents per page), which are always billed at the actual cost to the Firm.

Our 2020 hourly rates range from \$110 to \$345 per hour with a blended rate of \$227 per hour. A breakdown is as follows:

<u>Attorneys</u>	<u>Rate</u>
Albin Bauer, II	\$330.00
David S. Hirt	\$330.00
Karrie M. Kalail	\$345.00
Krista Keim	\$325.00
Maria Limbert Markakis	\$330.00
Sherrie C. Massey	\$330.00
Scott C. Peters	\$345.00
Daniel R. Shisler	\$170.00
Tax Paralegals	\$150.00
Paralegals	\$135.00
Law Clerks	\$110.00

GENERAL REQUIREMENTS AND CONDITIONS

PKM agrees to adhere to the following conditions and affirmatively states the following:

- ✓ We presently have an office in Independence, Ohio on Rockside Road, and have been located here for more than 20 years.
- ✓ We have the personnel/resources to assure service continuity and agree to maintain an adequate level of qualified personnel for the term of the Agreement.
- ✓ We agree to maintain and preserve confidentiality in all matters relating to the resultant contract and services provided under it.
- ✓ We agree that the Board and PKM may terminate the contract at any time. In the event of termination, the Board shall pay PKM for any services rendered prior to termination. However, if we have damaged the Board in any way, such payment may be withheld until the Board determines whether or by how much such payment should be reduced.
- ✓ We agree to accept and follow management direction from the Board and specifically, the Board's designated personnel (e.g., Board President, Treasurer, Superintendent, Assistant Superintendent, Director of Special Education, Director of Pupil Services, Principals, etc.).
- ✓ We agree to conform to all applicable laws and policies of the Board.
- ✓ We agree that if the Board cannot in good faith negotiate a written contract within a reasonable time with PKM, the Board may unilaterally cancel its selection of PKM.

- ✓ We agree that periodic payments to the firm will be made as agreed upon in the contract with the Board.
- ✓ We agree that the contract between the Board and PKM shall be governed and construed in accordance with the laws of the State of Ohio and the policies of the Board.
- ✓ We agree that PKM shall maintain adequate liability insurance.

NON-DISCRIMINATION STATEMENT

PKM does not and shall not discriminate against any person on the basis of race, color, religion (creed), sex, age, national origin (ancestry), disability, marital status, or military status. We comply with all applicable non-discrimination laws.

TAXPAYER'S IDENTIFICATION NUMBER

Since the District maintains our Taxpayer Identification Number for present billing purposes, we can provide an updated W-9 upon request.

CONCLUSION

At a smaller firm, relationships with clients and attorneys are typically closer and more personal. By having a small, boutique law firm that focuses on school law, we are able to take great care of our clients and provide them with the specialized education law services they need.

Peters Kalail & Markakis Co., L.P.A. looks forward to establishing a relationship with the Brecksville-Broadview Heights City School District Board of Education and serving in the role as trusted legal counsel. Going forward, and by working together as a team, we believe that the structure we have proposed will ensure our ultimate success together and exceptional, accessible, and cost-effective legal services for your upcoming negotiations. To that end, we are readily available to meet with the Board and/or administration to discuss our compatibility and the nature of our role with the District.

Should you have any questions, please do not hesitate to contact me. You may find additional information on our firm's website at www.ohioedlaw.com.

Sincerely,

Karrie M. Kalail

Karrie M. Kalail
330-289-7467 (Cell)
kkalail@ohioedlaw.com